ORDINANCE NO. 597

AN ORDINANCE TO AMEND ARTICLE 5-5(B) OF ORDINANCE NO. 359 TO ESTABLISH UPDATED AREA REQUIREMENTS FOR THE C-2 (GENERAL BUSINESS) DISTRICT,

WHEREAS, the City of Rector adopted Ordinance No. 359 pursuant to the authority granted under Act 186 of 1957 to regulate land use and development in order to promote the public health, safety, and general welfare; and

WHEREAS, the C-2 (General Business) District is intended to accommodate a broad range of commercial uses serving the needs of the community; and

WHEREAS, the existing area and setback requirements for the C-2 District were drafted primarily for development along state and federal highways and have the unintended effect of discouraging commercial development and reinvestment on local streets; and

WHEREAS, the Planning Commission has identified a need to provide clear, predictable, and context-appropriate dimensional standards that allow commercial development on streets other than state and federal highways; and

WHEREAS, the City of Rector Comprehensive Land Use Plan (2025–2030) supports commercial infill, reinvestment in underutilized properties, and zoning regulations that align with existing infrastructure and development patterns; and

WHEREAS, the Planning Commission conducted a duly noticed public hearing on May 12, 2026, to receive public input regarding proposed amendments to Article 5-5(B) of the Rector Zoning Ordinance governing dimensional standards in the C-2 District; and

WHEREAS, *members of the public were present at said hearing and were afforded the opportunity to comment, and public input was received and considered by the Planning Commission; and*

WHEREAS, the City Council finds that updating the C-2 area requirements to reflect modern development practices will encourage local business growth while maintaining appropriate standards for access, safety, and compatibility with surrounding uses;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS:

Section 1. Purpose

The purpose of this ordinance is to modernize outdated commercial area requirements in the C-2 district, to allow development on streets other than state and federal highways.

Section 2. Article 5-5(B) of Ordinance No. 359, as amended, is hereby repealed and replaced in its entirety to read as follows:

B. Area Requirements

1. Minimum Lot Area: 8,000 square feet.
2. Minimum Lot Width at Front Building Line: 50 feet.
3. Maximum Lot Coverage: 60%.
4. Front Yard Setback:
    a. Minimum front yard setback shall be fifteen (15) feet from the front property line.
    b. Where a property fronts a state or federal highway, any additional access, setback, or sight-distance requirements imposed by the Arkansas Department of Transportation shall apply.
5. Rear Yard Setback: Minimum of 15 feet from rear property line.
6. Side Yard Setback (interior lot): Minimum of 10 feet from each side property line.
7. Side Yard Setback (exterior lot): Minimum of 15 feet from street-side property line.
8. Height: Maximum height of a structure shall be two stories and not to exceed 30 feet.
9. On-lot Parking Spaces:
    a. On-lot parking facilities shall be provided for all employees.
    b. Provisions shall be made for on-lot customer parking reasonably sufficient to accommodate the intended use, as determined through building permit review by the Enforcement Officer.
    c. Motels, tourist courts, mobile home parks shall provide one on-lot parking space for each sleeping unit or mobile home space.
10. Loading and Unloading:
    a. Loading and unloading facilities shall be provided so as not to block any public way.

All remaining provisions of Article 5-5 not amended herein shall remain in full force and effect.

Section 3. Severability

That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 4. Repealer

That all ordinances and resolutions and parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

PASSED AND APPROVED this 9th day of July, 2026.

By: _____
Mayor Shawn Brandon

Attested:

_____
City Clerk